

TAB 3



Board of Education Report

File #: Rep-278-23/24, Version: 1

Authorization to Execute a Renewal License Agreement for District-Wide Use of Radio Tower Space Located on Oat Mountain #3, Santa Susanna Mountains in Chatsworth California

June 4, 2024

Facilities Services Division

Action Proposed:

Authorize the Chief Facilities Executive and/or her designee(s), to execute a renewal license agreement (Agreement), and/or any other reasonable instruments, with American Towers LLC, for remote tower space located on Oat Mountain #3, 12801 Tampa Avenue in Chatsworth. The tower provides radiofrequency transmission used for the District-wide radio communication system which is accessed by all schools and Los Angeles Unified School District (Los Angeles Unified or District) offices. The Agreement includes a term of five years and provides Los Angeles Unified with three options to renew the term for a period of five years each. The total base rent of this Agreement over the five-year term is \$199,241.04.

Background:

Information Technology Services (ITS) and Los Angeles School Police Department (LASPD) have licensed the remote tower space and operated a communications system on Oat Mountain #3 since July 1993. The current license expires on June 30, 2024, and a new renewal license is required to continue occupying the tower.

The entire fleet of school police vehicles, school buses, truck operations, as well as each school and office depend on reliable radio-frequency bands for daily operations, which provide information to help create safe secure environments across the District. As a system, the radio communication infrastructure which consists of antenna, tower and equipment is organized to ensure that the radiofrequency between remote towers, site transmitters and receivers remains open, seamless, and free and clear with minimal disruption or interference.

The proposed Agreement has a term of five years, with three options to renew the term for a period of five years each. The monthly base rent in the first year of the term will be \$3,127.33 and will be subject to an annual fixed increase of 3%.

Expected Outcomes:

Approve and authorize the Chief Facilities Executive and/or her designee(s) to execute the Agreement and/or other reasonable instruments for remote tower space at Oat Mountain #3. The proposed Agreement will allow continued, safe, effective, reliable radio communication throughout the District, which benefits all students and offices.

Board Options and Consequences:

If approved, the Chief Facilities Executive and/or her designee(s) will execute agreements necessary to keep radiofrequency transmission open for District-wide communications.

If the Board does not approve and authorize the proposed action, radio communication transmission from Oat

Mountain #3 will no longer be made available and an alternative site will have to be identified to ensure that all radio communication lines remain open. Any new site selected must be able to provide the same or better quality of radio coverage consistent with the current location and will require all radio tower equipment to be realigned and cleared for operation by both the Federal Communications Commission and Federal Aviation Administration prior to use.

Policy Implications:

The requested action is consistent with current Los Angeles Unified policy and advances the Los Angeles Unified 2022-2026 Strategic Plan Pillar 4 Operational Effectiveness Modernizing Infrastructure by continuing to provide District-wide use of radio tower space to support the District's radio communication infrastructure.

Budget Impact:

The first year of the Agreement will be for a monthly base rent payment of \$3,127.33. For each subsequent year, the base rent will increase by 3%. The proposed monthly rent is comprised of direct costs and market-based rent inclusive of, but not limited to, utilities, taxes, tower height, capacity, and administration of the Agreement. In the first year of the Agreement, the annual rent for the proposed use is anticipated to be approximately \$37,527.96. The following chart shows the anticipated annual rent for each year of the term:

Base Rent	Year 1	Year 2	Year 3	Year 4	Year 5
	\$37,527.96	\$38,653.80	\$39,813.41	\$41,007.82	\$42,238.05

Location: Oat Mountain #3 near 12801 Tampa Avenue, Chatsworth, California, 91311

Landlord: American Towers, LLC, a Delaware Limited Liability Company

Rentable Area: Remote Tower Space and Radio Shelter

Term: Five years, and three options to extend the term for a period of five years each term.

Previous Base Rent: \$36,434.80 annually.

Proposed Base Rent: Monthly base rent for year one is \$3,127.33 and is subject to an annual adjustment of 3%.

The total base rent of this Agreement over the five-year term is \$199,241.04. Funding will be provided by the General Fund, Program Code 15125.

Student Impact:

The continued Agreement for the remote tower space will provide reliable radio-frequency bands for daily operations and provide information to help create safe secure environments for students across the District.

Equity Impact:

The existing radio tower space will be able to provide coverage to support Los Angeles Unified school police vehicles, school buses, truck operations, schools, and offices

Issues and Analysis:

The tower at Oat Mountain #3 has served the daily radio operations of Los Angeles Unified since 1993. Given

File #: Rep-278-23/24, Version: 1

the ground terrain, elevation, slope, and tower infrastructure, staff finds the present site to be optimal to support current radio transmission needs.

Attachments:

Exhibit A - Fifth Amendment to License Agreement No. 62293

Informatives:

None

Submitted:

04/22/24

File #: Rep-278-23/24, Version: 1

RESPECTFULLY SUBMITTED,



ALBERTO M. CARVALHO
Superintendent

APPROVED BY:



PEDRO SALCIDO
Deputy Superintendent
Business Services and Operations

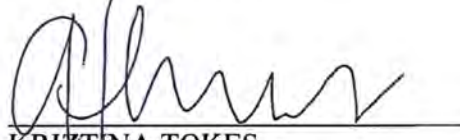
REVIEWED BY:



DEVORA NAVERA REED
General Counsel

✓ Approved as to form.

APPROVED BY:



KRISTINA TOKES
Chief Facilities Executive
Facilities Services Division

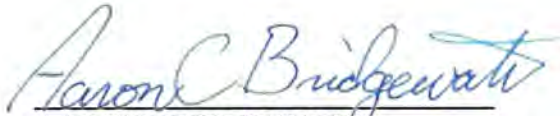
REVIEWED BY:



NOLBERTO DEGADILLO
Deputy Chief Business Officer, Finance

✓ Approved as to budget impact statement.

PRESENTED BY:



AARON BRIDGEWATER
Director of Facilities Planning & Development
Facilities Services Division

Licensor Site Name/Number: Oat Mountain #3/ 8053

Licensor Contract Number: WE801119

Licensee Site Name/Number: N/A / N/A

FIFTH AMENDMENT TO LICENSE AGREEMENT NO. 62293

This Fifth Amendment (the “Fifth Amendment”) to that certain License Agreement No. 62293 dated July 27, 1993, by and between Meridian Communications and Los Angeles Unified School District (the “License”) as amended by that certain First Amendment to License Agreement No. 62293 dated September 8, 1994, as amended by that certain Second Amendment to License Agreement No. 62293 dated December 28, 1995, as amended by that certain Third Amendment to License Agreement No. 62293 dated October 8, 2007, as amended by that certain Fourth Amendment to License Agreement dated October 25, 2023 (collectively the “Agreement”) is made and entered into as of the latter signature date hereof, by and between American Towers LLC, a Delaware limited liability company, as successor-in-interest to the Agreement (the “Licensor”) and Los Angeles Unified School District, a school district duly organized and existing under the laws of the State of California (the “Licensee”) (collectively, the “Parties”).

RECITALS

WHEREAS, Licensor owns a certain communications tower on a certain parcel of land located at 12801 Tampa Ave., Chatsworth, California 91311-1536 more commonly known to Licensor as the Oat Mountain #3, CA tower site (the “Facility”); and

WHEREAS, Licensor and Licensee entered into the Agreement for the use of a certain portion of the Facility; and

WHEREAS, the Parties agree to renew the Agreement, including all of the terms and conditions as set forth herein.

NOW THEREFORE, in consideration of the foregoing promises and for other good and valuable consideration, the receipt and sufficiency of which is hereby acknowledged, the Parties hereto agree as follows:

- 1) Licensor and Licensee agree to renew the term of the Agreement, which will commence on July 1, 2024, for a period of five (5) years and shall expire on June 30, 2029 (the “Renewed Term”).
- 2) Immediately following the expiration of the Renewed Term, there shall be three (3) additional periods of five (5) years each (each a “Renewal Term”) to renew the terms of the Agreement. The Agreement shall automatically renew for each successive Renewal Term unless either Party notifies the other in writing of its intention not to renew this Agreement at least one hundred eighty (180) days prior to the end of the then existing term.
- 3) Effective upon July 1, 2024, the License Payment shall be increased by Ninety-One and 09/100 Dollars (\$91.09) per month (“Increased Fee”) and adjusted pursuant to the Annual Escalator as set forth on Section Four of this Fifth Amendment. The Increased Fee for any fractional month at the beginning or end of the period shall

Licensors Site Name/Number: Oat Mountain #3/ 8053

Licensors Contract Number: WE801119

Licensee Site Name/Number: N/A / N/A

be appropriately prorated.

- 4) Effective upon July 1, 2025, and each anniversary thereafter during the term, the License Payment shall be increased by three percent (3%) (“Annual Escalator”).
- 5) Capitalized terms contained herein, unless otherwise defined, are intended to have the same meaning and effect as that set forth in the Agreement.
- 6) All other terms and provisions of the Agreement remain in full force and effect.

[SIGNATURES APPEAR BELOW]

IN WITNESS WHEREOF, the Parties hereto have set their hands to this Fifth Amendment to that certain License Agreement No. 62293 as of the day and year written below:

LICENSEE:

Los Angeles Unified School
District, a school district duly
organized and existing under the
laws of the State of California

LICENSOR:

American Towers LLC, a Delaware
limited liability company

By: _____
Name: _____
Title: _____
Date: _____

By: _____
Name: _____
Title: _____
Date: _____